IN THE DISTRICT COURT OF APPEAL
FIFTH DISTRICT OF FLORIDA

CITRUS COUNTY SCHOOL BOARD,
Petitioner/Appellant,

vs.

TERESA ROYAL,
Respondent/Appellee.

CASE NO:_____
LT: CASE NO.: 25-002768

_____/

PETITION FOR REVIEW OF NONFINAL ORDER OF ADMINISTRATIVE LAW JUDGE

Petitioner, The School Board of Citrus County, Florida, pursuant to Fla. R. App. R. 9.100(c)(3), 9.130(1), and 9.190(b)(2) and Florida Statutes §120.68(2)(a), petitions for review of a non-final order of an Administrative Law Judge entered in Division of Administrative Hearing (DOAH) Case Number 25-002768. The Order for which review is sought denied Respondent's motion to disqualify Petitioner's counsel, Thomas M. Gonzalez, but allowed Respondent to call Gonzalez as a witness and included the following directive to Petitioner: "[i]n that regard Petitioner should consider obtaining an attorney other than [Gonzalez] to represent [Petitioner] for the remainder of this case."

INTRODUCTION

On January 23, 2026, Administrative Law Judge Law (ALJ) Judge James H. Peterson, III entered "Order Denying Respondent's Motion to Disqualify Petitioner's Counsel, But Allowing Respondent To Call Thomas M. Gonzalez, Esquire As a Witness." (Order) (Apx. 6-7).[1] The Order addressed Respondent's "Motion To Disqualify Petitioner's Counsel And Designation of Thomas M. Gonzalez As a Witness." (Apx. 292-317) (Motion to Disqualify). That motion was not filed until the ALJ entered "Scheduling Order From First Day of Hearing." (Apx. 290-291).The Scheduling Order directed Respondent to file "motions seeking to disqualify and compel Petitioner's current counsel to appear as a witness in these proceedings" and Petitioner to file responses to the motions. (Id.).

Although styled as a denial of Respondent's motion to disqualify Gonzalez from representing Petitioner in this case, the Order in effect granted Respondent's requested relief by including the following provision:

> Respondent may call Petitioner's current counsel, Thomas M. Gonzalez, as a witness in this case. In that regard, Petitioner should consider obtaining an attorney other than Thomas M. Gonzalez to represent Citrus County School Board for the remainder of this case. The other attorney may be from Petitioner's current attorney's law firm. (Apx. 6).

[1] As directed by Rule 9.220 Fla. R. App. P., Petitioner has submitted an Appendix, sequentially paginated, with this Petition. Appendix references herein will be made through the abbreviation "Apx." followed by the page designations.

The ALJ announced his ruling on January 23, 2026 in a telephone conference which had been noticed as a "telephonic hearing on Respondent's Motion to Disqualify Petitioner's Counsel and Designation of Thomas M. Gonzalez as a Witness." (Apx. 410-411). The hearing was not recorded. No argument was heard before the ALJ announced his decision. The ALJ and counsel discussed the ruling. The written Order was issued after the hearing concluded. Petitioner filed its Motion For Entry of Order That Will Allow For Review By Certiorari, seeking clarification of the Order. (Apx. 412-415). That motion was denied on February 6, 2026. (Apx. 416).

JURISDICTION AND VENUE

Section 120.68(1)(b), Fla. Stat. (2025) provides that "a preliminary, procedural, or intermediate order of … an administrative law judge of [DOAH] is immediately reviewable if review of the final agency action would not provide an adequate remedy." The granting of a motion to disqualify counsel is such an order, justifying immediate review. *Gonzalez v. Chillura*, 892 So.2d 1075, 1076 (Fla. 2d DCA 2004) (Finding review by certiorari appropriate because, "The effect of an order granting such a motion is to deny a party counsel of its choice, a material injury without remedy on appeal.").

Fla. R. App. P. 9.190(b)(2) provides that review of nonfinal agency action under the Administrative Procedures Act (APA), including nonfinal

action by and administrative law judge, … must be commenced by filing a petition for review in accordance with Fla. R. App. P. 9.100(b) and (c)(3). Venue is appropriate in this court. Fla. R. App. P. 9.030(b) confers on district courts of appeal jurisdiction to review by appeal administrative action if provided by general law. Section 120.68(2), Fla. Stat. (2025) provides that judicial review of administrative actions under the APA shall be sought in the appellate district where the agency maintains its headquarters or where a party resides or as otherwise provided by law."

SCOPE OF REVIEW

The scope of review for judicial review of administrative action is provided by law in § 120.68(6), (7) and (8):

> (6)(a) The reviewing court's decision may be mandatory, prohibitory, or declarative in form, and it shall provide whatever relief is appropriate, irrespective of the form of the petition. The court may:
> 1. Order agency action required by law; … set aside agency action; … or decide the rights, privileges, obligations, requirements, or procedures at issue between the parties; and
> 2. Order such ancillary relief as the court finds necessary to redress the effects of official action wrongfully taken or withheld.
> (7) The court shall remand a case to the agency for further proceedings consistent with the court's decision or set aside agency action, as appropriate, when it finds that:
> (a) There has been no hearing prior to agency action and the reviewing court finds that the validity of the action depends on disputed facts;
> (b) The agency's action depends on any finding of fact that is not supported by competent, substantial evidence in the record of a hearing conducted pursuant to ss. 120.569 and 120.57; however the court shall not substitute its judgment for that of an

> agency as to the weight of the evidence on any disputed issue of fact;
> (c) The fairness of the proceedings or the correctness of the action may have been impaired by a material error in procedure or a failure to follow prescribed procedure;
> (d) The agency has erroneously interpreted a provision of law and a correct interpretation compels a particular action; or
> (e) The agency's exercise of discretion was:
> 1. Outside the range of discretion delegated to the agency by law;
> 2. Inconsistent with agency rule;
> 3. Inconsistent with official stated agency policy or a prior agency practice, if deviation therefrom is not explained by the agency; or
> 4. Otherwise in violation of a constitutional or statutory provision; but the court shall not substitute its judgment for that of the agency on an issue of discretion.
> (8) Unless the court finds a ground for setting aside, modifying remanding, or ordering agency action or ancillary relief under a specified provision of this section, it shall affirm the agency's action.

See *BAM Trading Services, Inc. v. Office of Financial Regulation*, 395 So.3d 687 (Fla 1st DCA 2024), overruling *State v. Murciano*, 163 So.3d 662 (Fla 1st DCA 2015). In *Murciano*, the First District Court of Appeal defined the scope of review for a petition seeking review of non-final agency action under section 120.68(1) to be "analogous to, and no broader than the right of review by common law certiorari" and therefore to obtain relief a petitioner was required to demonstrate that the agency had departed from the essential requirements of the law. 163 So.2d at 664-665. In *BAM Trading Services*, The Court sitting *en banc* declined to apply that definition

and “overrule[d] the erroneous holdings in *Murciano* … and any other decision where we held that our scope of review under section 120.68(7) ‘is analogous to and no broader than the right of review by common law certiorari.’” 395 So.3d at 689: “[N]either the constitution nor the Legislature equated our review to the demanding standard applicable to common law certiorari review. In addition, in section 120.60(6), the Legislature provided that such orders are subject to ‘judicial review.’” *Id.*

STATEMENT OF FACTS

A. Petitioner’s Petition for Termination

On April 21, 2025, Scott Hebert, as Superintendent of the School District of Citrus County, Florida, filed a Petition for Termination which was a statement of charges against the Respondent Teresa Royal in support of the Superintendent’s recommendation to The School Board of Citrus County, Florida that Royal’s employment with the School Board be terminated for just cause. (Apx. 134-146, Letter and Petition for termination).[2] The Petition alleged that Royal violated Citrus County School

[2]Section 1012.22(1)(f), Fla. Stat. (2025) provides that a district school board “shall suspend, dismiss, or return to annual contract members of the instructional staff and other school employees[.]” Section 1012.27(5)(a), Fla. Stat. (2025) provides that the district school superintendent is to recommend employees for dismissal. Section 1012.40(1)(c) provides that when the superintendent seeks termination of an employee, “the district school board may suspend the employee with or without pay. The employee shall receive written notice and shall have the opportunity to formally appeal the termination. The appeals process shall be determined

Board (CCSB) Policy 6.26 which prohibits retaliation against an employee by another employee for asserting or alleging an act of bullying or harassment, and CCSB Policy 6.25 which makes applicable to all School Board employees the Principles of Professional Conduct for the Education Profession in Florida, specifically Fla. Admin. Code Rule 6A-10.081(2)(c)1, which requires individuals to maintain honesty in all professional dealings, Rule 6A-10.081(2)(c)4, which prohibits harassment or discriminatory conduct which unreasonably interferes with an individual's performance of professional or work responsibilities, and 6A-10.081(2)(c)5, prohibiting malicious or intentionally false statements about a colleague.

The Petitioner has been represented at all times relevant to this matter by Thomas M. Gonzalez, Petitioner's outside counsel for employment matters. On April 30, 2025, Royal, through her attorney Bobi Frank, requested a hearing on the Superintendent's recommendation and the School Board referred the matter to the Division of Administrative Hearings (DOAH). The hearing was set for hearing on August 27 and 28, 2025.

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by … school board policy in the event there is no collective bargaining agreement." Respondent was suspended without pay on April 8, 2025. (Apx. 134-146, Letter and Petition for termination).

B. ROYAL REQUESTS GONZALEZ'S DEPOSITION

On July 15, 2025, Respondent served four requests for production of documents, none of which sought identification of persons having knowledge of the matters alleged in the petition for termination or the knowledge those persons would have or was otherwise addressed to the allegations of the Petition for Termination. (Apx. 147-152).[3] On July 22, 2025, Respondent's counsel's office informed Petitioner that she needed to depose Gonzalez.

Gonzalez responded, citing R. Regulating Fla. Bar. 4-3.7 and asking opposing counsel the reasons for the deposition. (Apx. 388, Attachment D).

Respondent responded:

> Yes, you are correct about the applicable Fla. Bar Rule. I believe you are a primary witness in this matter as you were retained, not in your attorney capacity, but rather to be an unbiased investigator for the [School Board]. Your final report is the basis for Ms. Royal's suspension without pay and recommendation for termination. There are many questions that only you can answer. (Apx. 387).

Gonzalez responded with the following:

> I don't understand. Whether I am a "primary" witness isn't the test. It's whether I'm a necessary witness for my client. The rule

[3]The requests sought access badge records for Petitioner, the disciplinary files for certain employees including four of the five employees named in the petition for termination and the interim director of human resources, "all documents kept on [Royal's] computer" in a specific folder, "the October 03 Investigation," and all videos recorded on Royal's iPad for the month of December 2024. (Apx. 147-152, Respondent's 1st Request for Production).

> itself doesn't apply to a deposition of an opposing attorney. Whether you can do that depends on whether I have factual information that can't be obtained [from another source]. What would that information be? I didn't interview anyone for the investigation of Ms. Royal's allegations of bullying. The only facts I had are the statements she volunteered to the investigator who investigated Ms. Royal's claims of an unsafe working environment. I'll be glad to talk but first I would ask for some written statement of the many questions that only I can answer. (Apx. 387, Attachment D)

Hearing nothing, Gonzalez reached out to opposing counsel on July 28, 2025:

> I haven't gotten a response from my last email so I'm writing back to see if we can get this case moving. … With respect to taking my deposition, since you haven't told me what you want to depose me about, we're not going to agree to taking it. We do need a resolution because if I have to testify on behalf of the District, I'll need to find counsel to handle the trial. I won't be able to do that until you tell me what you want to depose me about. One of the factors that determines whether you can depose opposing counsel is the possibility of obtaining information by other means. You are of course welcome to serve interrogatories asking for the names of persons having knowledge of facts relevant to the charges and separately you can provide me the subjects you want to depose me on. Either way, we need to get this in front of the ALJ for a decision. Please let me know how you want to proceed. (Apx. 386, Attachment D) (emphasis added).

Opposing counsel's response was to provide dates for the deposition, state her intention to issue a subpoena, and write:

> You were hired by CCSB to conduct an unbiased investigation, I want to ask why you made certain decisions as the investigator. I also want to know how you came to certain decisions and conclusions. I also want to know about your communications with CCSB and the like. Clearly only you can answer those questions. These questions are germane to

> determining whether the recommendation for her termination is based on just cause. (Apx. 385, Attachment D)(emphasis added).

C. ROYAL OBTAINS NEW COUNSEL

No subpoena was ever served and there was therefore no opportunity for Petitioner to move for a protective order. A week later, opposing counsel announced her intention to withdraw from her representation of the Respondent. (Apx. 389, Attachment E). The motion was granted on August 11, 2025. (Apx. 153-154). The final hearing was rescheduled to November 17 and 18, 2025 to allow Respondent time to retain new counsel. On September 16, 2025, Gary S. Edinger filed his appearance and in an email sent on September 18, 2025 wrote:

> We will seek to reschedule the final hearing expeditiously, but allowing for some discovery. I note you wished to take Ms. Royal's deposition and I intend to take the deposition of a corporate representative. (Apx. 393, Attachment G).

Petitioner responded to the email the same day, saying, "Let me know your corporate rep subjects and I will get on it." (Apx. 392, Attachment G). Mr. Edinger also asked that a copy of Petitioner's responses to Respondent's requests for production be sent to him, explaining that he, "supposed they were sent to Respondent's previous counsel, but I do not believe they left matters on good terms." (Apx. 392). In fact, the documents had been sent directly to Royal because they became

due after her original counsel was discharged but before Edinger's appearance. (Apx. 391, Attachment F).

The hearing was rescheduled for December 9 and 10. Respondent made no attempt to obtain discovery until October 28, 2025, more than a month after his appearance in the case, when Mr. Edinger declined to meet for the mandated pre-hearing meeting because it was "unnecessary." (Apx. 396, Attachment I). Respondent informed Gonzalez that he wished to schedule the corporate deposition. The areas of inquiry described in the email included the following:

> 3. Discussion and review of any documents or statements acquired during the course of the School Board's investigation;
> 4. A review of all witnesses interrogated in the course of the investigation;
> 5. Inquiry into the scope of the due process protections involved, including an explanation for why no interview was conducted with Ms. Royal;
> 6. The substantive basis for the conclusion in the investigative report. (Apx. 383, Attachment C

> Gonzalez responded:
> Hi, Gary: I will get on this but with respect to topics 3, 4, 5, and 6, let's talk about how you want to handle it. I wrote the report. There were no interviews and the only documents involved were Ms. Royal's complaints against all but one of the employees who had complaints against her, Royal's submission of the outside investigator who looked into her complaint of feeling unsafe working with Ms. Walker, the investigator's findings, and Ms. Royal's response to the investigator's conclusions. The conclusion and the decision not to interview Royal were mine and I'll be glad to share both. (Apx. 381-382, Attachment C).

Respondent answered that he "need[ed] to inquire about these matters as they go to the heart of the School Board's case as well as my defense. I understand that you conducted the investigation and authored the report. … If you conclude that there is no one other than you who can provide that testimony, then we need to have a serious discussion." (Apx. 380-381, Attachment C). Gonzalez responded the same day:

> I'll be glad to discuss but this looks like another good reason I don't plan on testifying in the hearing. We are talking about a deposition. What is that you hope to get out of this discovery that you will introduce at the hearing? The issue in this case is whether there is just cause for termination as alleged in the petition for termination. The investigation doesn't prove those allegations and it won't be offered by the School Board. The case will be proven if at all by the witness the School Board presents, which I will be glad to share with you. I got the witnesses from the documents Ms. Royal submitted. The complainant is the Citrus County School Board. (Apx. 380).

The discussion continued with Mr. Edinger responding:

> I'm pretty sure I didn't ask you why you wanted to spend a day deposing my client. … By the same token, it seems odd for you to ask why I want to depose a party opponent in order to prepare my defense.
>
> But since we're speaking frankly, here are my thoughts. I don't have the time and my client does not have the resources to depose all of the employees who lodged complaints. But the School Board seems to have done some of that work for me. So, it seems to be an efficient way to conduct discovery. Also, I do not intend to limit my inquiry just to the investigative report. Among other things, I want to know what factors the School Board may have considered which are not in the investigative report. For instance, did other employees complain but were not interviewed or were otherwise omitted from the report? And what significance did the School Board place on Ms. Royal's reactive complaints once the employees stepped forward?

> So, in summary, I want to depose the party opponent because that's what attorneys do when they prepare their cases. I provided a list of likely topics because your client is entitled to know the relevant areas of inquiry so it can nominate one or more appropriate deponents. No magic here; just litigation in the ordinary course. (Apx. 378-379).

In fact, Gonzalez had not interviewed any of the employees who had filed complaints against her. The outside investigator of Royal's complaint of feeling unsafe in the human resources office space did and those interviews were summarized in the report the investigator had produced. (Apx. 49-75). Gonzalez answered opposing counsel:

> I really think we need to talk, Gary. I deposed your client to find out her responses to the allegations in the petition for termination. When you refer to employees who lodged complaints, I assume you are referring to employees who filed complaints against Ms. Royal. The employees who filed those complaints are in fact the only employees who filed complaints against Ms. Royal. As to the investigation of these complaints, I would be the person who can testify about them. But I would also note that none of those complaints were sustained and they have nothing to do with the petition for termination. With respect to the investigation of Ms. Royal's complaints against all but one of the employees who filed complaints against Ms. Royal, Ms. Royal is the only person who filed a complaint against those employees. No one was interviewed as part of my investigation of Ms. Royal's complaint. My report on Ms. Royal's complaints contains an explanation of why the not sustained complaints against Royal were different than hers against them. (Apx. 378, Attachment C).

Edinger responded October 29, 2025, writing, "I agree that a discussion is needed. …Is there a good time to chat on Thursday afternoon or Friday?" Gonzalez responded, "Either one. …I'm getting a new knee on

Monday but that should only keep me off the phone a couple of days." (Apx. 377, Attachment C). Gonzalez heard nothing about the date for the discussion counsel were to have, in fact nothing at all until November 11, 2025, when Edinger wrote, "I'm still waiting on dates for the deposition of the School Boards representative. … *As far as whether you'll need to testify to provide some of that information, I doubt that is the case.* But we can talk about." I … will be available after 11:00 tomorrow. (Apx. 376) (emphasis added).

The deposition took place on November 20, 2025. (Apx. 155-226). Gonzalez answered all questions asked and did not object or claim privilege. (Apx. 158-225). Gonzalez was specifically asked who made the only decision that has been made to date:

> Q. On the last page of this petition, we see Recommended Action, where it says, "Each of these violations constitutes independent cause and is the basis for termination of respondent's employment." Is that an accurate statement of the action recommended under the petition for termination?
> A. It is.
> Q. And who made the decision as to the Recommended Action?
> A. As to whether to recommend the action to the school board?
> Q. *Yes, sir.*
> A. *That would be the superintendent of schools.* (Apx. 163, p. 13:6-18) (emphasis added).

Gonzalez also testified to his discussions with Steve Baumer, who was in charge of human resources at the time. (Apx. 168, p. 18:3-24). In

keeping with Respondent's counsel's preference, the pre-hearing statement that was due on November 26, 2025 was completed without a conferral. On November 26, 2025, Respondent responded to a draft prehearing statement prepared by Petitioner and sent to Respondent on November 21, 2025, but did not provide a witness or exhibit list because they were a "work in progress." (Apx. 401, Attachment K). Respondent did provide a statement of the case. The statement did not include identification of any issue involving the conduct of the investigation. (Apx. 227-242).[4] Respondent alleged that she was a "victim of an orchestrated effort to secure her termination." (Id.). She characterized the "principal basis for

[4]The statement of the case noted that six employees who had filed charges of bullying and harassment against Respondent suffered no discipline for their unfounded complaints. (Id.). The evidence will show that the six employees filed their complaints against Royal after and because it had been announced that she would be returning to the Human Resources Department. Royal had not made complaints against any of the six employees. She had, however, included them in her statement to the outside investigator which resulted in the employees being questioned by the investigators. The employees had no idea why they were being questioned and the investigator would have had no knowledge of the allegations Royal had made against the employees in her statement had Royal not submitted that statement. The evidence will show that when they learned Royal would be returning to the workspace, their reaction was so intense that they were encouraged by the interim head of human resources to file complaints against Royal. In contrast, in her complaints Royal named the dates on which each of the employees had filed their complaint against Royal as the date on which those employees had committed bullying and harassment. The School Board harassment and bullying policy specifically defines the act of filing an allegation of bullying and harassment against another employee as an act of bullying and harassment.

[her] complaints was the fact that there was no substantive basis for the charges of bullying and harassment and they were instead merely an expression of personal grievances." (Id.).

By the time Respondent filed the pre-trial stipulation, Gonzalez had left for the Thanksgiving holiday. When he returned on December 3, 2025, Gonzalez saw that he was listed a witness. He contacted Mr. Edinger and asked what he would question Gonzalez about. (Apx. 372, Attachment B). Edinger replied with the following:

> Most witnesses don't get to find out what they're going to be asked before trial! But I'm perfectly willing to humor you on this one.
> I expect to cover exactly the same ground as the questioning at your deposition. But I anticipate live questioning and not just reading the deposition into the record at the hearing. After all, you're available to testify in person. You didn't have any objections during the hearing and I would not anticipate the need for any at the hearing. (Apx. 371 Attachment B).

Respondent's counsel responded as follows:

> I understand but I was comfortable testifying as the corporate for paragraphs 3, 4, 5, and 6 of the notice. As you know, there was no investigation of the charges that Ms. Royal submitted a false claim of bullying. The only documents acquired were the report of the investigation of Royal's complaint and the statements she provided. No witnesses were interrogated or interviewed. Royal had no right to be interviewed, and the substantive basis of the investigation are those stated. I had no problem testifying to any of that, all of which was is undisputed. If you're going to get me to testify to anything beyond that then I don't think I can do that. (Apx. 371).

Mr. Edinger replied:

> Please pardon the delayed response. I might question the decision to accept representation in a case where you performed the investigation. It seems inevitable that the person responsible for the investigation would be a fact witness at the final hearing. (Apx. 370)

Gonzalez responded with a lengthy email which closed with the statement, "*So I won't be testifying to any disputed issue and … you need to tell me if we need to take this up with the judge.*" (Apx. 403, Attachment L) (emphasis added). Hearing nothing, Gonzalez contacted the Administrative Law Judge's office on Monday, December 8, 2025 and received the advice that Petitioner's objection to being called as a witness could be heard at the hearing, scheduled to begin the next day. The undersigned informed opposing counsel of this information and noted that since Petitioner would present its case first, the objection would not be made until Respondent called Gonzalez as a witness. Respondent made the following reply:

> That is not an acceptable approach. I have made clear for some time that you would be a witness in this case. Your voluntary appearance as one of the School Board's witnesses at the representative depo must surely have impressed that fact on your mind.
> If you perceive you have an ethical issue, it is not appropriate to deal with that issue AFTER the proceedings commence. Especially when you had advance notice that you would be called as a witness in the case. I don't think it matters in the slightest whether you are called as a witness in your case in chief or mine.
> To my knowledge you are not immune from being called as a fact witness and no privilege applies. You have information

which is relevant to the case. If you believe that you have a valid objection that would keep you off the witness stand, it is incumbent upon you to make that objection now, through a motion in limine.

Whether you also file a motion to withdraw is not my call. I have made clear my client's position that she (1) will call you as a witness; but (2) does not seek your withdrawal as counsel for the School Board. (Apx. 368, Attachment A).

D. THE HEARING

Respondent raised the issue at the beginning of the hearing, prefaced by the following statement:

Well, firstly, I wanted to provide the context which is that Mr. Gonzalez was retained as outside counsel to perform the investigation that led to the termination decision. So there are a number of reasons why we're going to concentrate on that investigation.

We're going to point to some shortcomings in it, some irregularities in the process, and our argument is going to be in part that it has colored the entire process, particularly the termination decision, out of a range of disciplinary options.

So the nature of that investigation and some of the choices, and in particular some of the language in that report, are important to our defense. It seems to me that Mr. Gonzalez is the individual who did that investigation is a natural witness. It just seems common sense.

We also took the representative deposition of the school board and Mr. Gonzalez ended up being the primary representative. . . .

This is our position, Judge. Having an attorney be the investigator and then essentially the prosecutor on behalf of the school board, and we would maintain effectively made the termination decision here, highly irregular.

We are not asking that Mr. Gonzalez be disqualified as counsel and the reasons - - he probably should be, but the reasons we're not making that formal motion is purely self-interest because if Mr. Gonzalez is disqualified or expects to withdraw from the proceeding, which I think ethics probably require, then

we’re without a hearing today or without the ability perhaps to go forward. (Apx. 249-251 transcript of hearing 7:17-9:24) (emphasis added).

Based on that representation, the ALJ propounded the following questions to Gonzalez:

THE COURT: Is your determination why the school board is moving for termination?
MR. GONZALEZ: My determination that there was no substance to the investigations?
THE COURT: Yes.
MR. GONZALEZ: No, my - - recommendation that action ought to be taken against, that recommendation from me, that is the basis for the termination.
THE COURT: And the recommendation is solely by looking at - -
MR. GONZALEZ: The statements that she made.
THE COURT: - - statements that she made without talking to any witnesses?
MR. GONZALEZ: Yes.
THE COURT: And you - - do you think you should be question on that determination if that’s the sole basis of the school board’s decision to terminate?
MR. GONZALEZ: Questioned on that determination?
THE COURT: Yes.
MR. GONZALEZ: As to?
THE COURT: The basis. I don’t know, is there someone else at the school board that can testify as to the justification for why they’re taking action to terminate her employment?
Mr. GONZALEZ: Other than the fact that she gave false - - made a false story?
THE COURT: No sir, other than the things that are - - that were discovered and determined by you in the investigation.
MR. GONZALEZ: No, I don’t think so.
THE COURT: I don’t see how we can proceed today,
MR. GONZALEZ: Okay.
THE COURT: I just - - you know, if you can get a third party to go in and make the determination. My problem is now we have an employee who is - - who is unemployed *with a termination*

that has been determined by a third party who's not able to testify because they're also counsel and I - - I understand Mr. Edinger's issue and - - issue for this?
Is there any way to resolve this temporarily in the interim if we do reschedule this? Because I think – *someone that is the decisionmaker should be subject to examination and cross-examination for their decision*, if indeed that's what we're doing here today. Because it would be my decision and am I just going to look at statements and make a determination or am I going to talk to witnesses who have made these determinations and that's - - that's what I'm here for today.
I'm here as a finder of fact and also to put some conclusions of law based on the law and the facts together and *I've got complaints and I guess I've got witnesses that we could talk to about what was going on in the - - office*, if that's what the basis is going to be. But from what I've seen, the sole determining factor is that report about her complaints that were made that were allegedly wrongful. So I agree with Mr. Edinger. I don't know that we can go forward today, but what can we do in the interim?
MR. GONZALEZ: I can't think of anything. If what you're saying is that you need me to be a witness, I can do that.
THE COURT: But does that disqualify you as counsel?
MR. GONZALEZ: I don't believe it does.
THE COURT: I mean, if that was your basis and you don't - - you aren't subject to cross-examination what - - Mr. Edinger, how would you like to proceed? It's problematic.
MR. EDINGER: So it is problematic, Judge. To my mind *it is impossible for Mr. Gonzalez to be both counsel and a fact witness*. You've heard Mr. Gonzalez acknowledge some of the aspects of the case where he is the only person who has knowledge and as I've indicated that is really the focus of our defense. We have a couple things to talk about, but that is really the primary focus of our defense. He's clearly a witness. (Apx. 257-260, 15:8-18:17) (emphasis added).

Asked for a resolution, Respondent suggested either continuing the hearing "to give the school board an opportunity to find counsel that's not

Mr. Gonzalez to proceed with this case" or, the ALJ grant Respondent's "formal motion" to dismiss the case because the Petitioner cannot proceed with Gonzalez "as counsel and a necessary fact witness." (Apx. 260-261,18:18-19:6). The ALJ addressed Gonzalez and noted that "it is unusual to have the main witness for the party to be counsel. Do you see that as problematic as well?" (Apx. 261, 19:13-17). Gonzalez replied that he was not the main fact witness and that he had no firsthand knowledge of the matters to which his witnesses would have testified.

The ALJ asked how Gonzalez came to the conclusion that Royal's statements about the persons she had complained against. He responded and noted that it was difficult to explain without going into a lot of detail. Then ALJ interrupted to ask, "and who is to go into that detail but you." (Apx. 262, 20:3-12).

Gonzalez responded: "Well, I think I can present that through evidence, Judge. I can present that through evidence, by the fact that on October 11th of 2024, Ms. Royal was in a meeting with her supervisors and left that meeting and refused to come back because she felt unsafe." (Apx. 262, 20:13-18). The ALJ recessed the hearing and stated his inclination to disqualify Gonzalez. (Apx. 267, 27:13-28:3). When he returned, the ALJ engaged in a colloquy that included the following:

> MR. GONZALEZ: Judge, to the extent - - that someone else needs to say she lied, I think I can get somebody prepared. Not today obviously.
> THE COURT: I didn't say can you get someone.
> MR. GONZALEZ: Well, no, I can get someone, yeah.
> THE COURT: I'm saying is there someone that's made that determination on behalf of the school board other than you?
> MR. GONZALEZ: In terms of the determination as to whether or not to go forward with the petition, that was the - - that was the decision ultimately of the superintendent who was not involved at all in anything that went before it. (Apx. 271-272, 29:22-30:11).

Gonzalez offered a proffer "of what they want to get from me as a witness in terms of what's gone on to have that as a basis." (Apx. 272, 30:13-22). Respondent was quick to object. (Apx. 272-273, 30:25-31-1). According to Respondent, the issue was "not a lack of preparation. " (Apx. 273, 31:5-10). In fact, Respondent had represented that his whole case had been prepared on the foundation of Gonzalez's testimony. Instead, Respondent argued that Gonzalez could not "defend the proffer." (Apx. 273, 31:5-10) "How would he raise objections for the record? He's the counsel." (Id.). On December 3, 2025, six days before the hearing in which Mr. Edinger made the last quoted statement, he responded to Gonzalez's request for a statement of the testimony Respondent would be seeking as follows:

> I expect to cover exactly the same ground as the questioning at your deposition. But I anticipate live questioning … After all, you're available to testify in person. You didn't have any objections during the course of the deposition and I would not

anticipate the need for any at the hearing. (Apx. 371, Attachment B).

The ALJ asked whether Respondent had the opportunity to depose the other witnesses that are listed. He had earlier represented that he lacked the time and his client lacked the resources to take that discovery. (Apx. 379, Attachment C). At the hearing Respondent answered as follows:

> MR. EDINGER: The opportunity and for reasons that are - - you know, have to do with attorney strategy I didn't pursue those. I am prepared to address those other witnesses. But, again, Mr. Gonzalez is really key to my defense and every time he responds to your Honor's question with I and me, that explains why we can't proceed with him as counsel. (Apx. 274, 32:10-17) (emphasis added).

The ALJ spoke the following admonishment to Gonzalez:

> THE COURT: You need to offer up a corporate representative that can be questioned as to the decision and if you're saying it's just someone who signed off on your decision, that's the problem. I can't make findings of fact based on the lawyer's determination if indeed you're going to be representing them and can't be a witness.
> MR. GONZALEZ: I wouldn't ask you to judge. I would ask you to make findings of fact based on the testimony of the witnesses who are going to testify to the untruthfulness and there's going to be a credibility determination that you're going to have to make, but those witnesses are going to testify. That's who's going to prove the lie. (Apx. 273, 31:11-24).

Gonzalez was ready to proceed. The ALJ decided instead to require Respondent to file a motion to disqualify and a motion to have him as a witness. The Scheduling Order followed.

E. THE MOTION TO DISQUALIFY GONZALEZ

Respondent filed her motion to disqualify Gonzalez and designate him as a witness.[5] In it, Respondent said:

> The evidence in this case shows that every aspect of the termination decision was made by attorney Thomas M. Gonzalez (hereinafter "Gonzalez") from the initial decisions concerning the structure and scope of the investigation; to the conclusions reached to the determination of the appropriate discipline; to the final decision to terminate Respondent's employment. (Apx. 292, ¶ 2) (emphasis added).[6]

Respondent's Motion included attempts to demonstrate the necessity of Gonzalez's testimony. None of the matters listed in the Motion involved a disputed issue of relevant fact. With respect to grounds for disqualification, Respondent alleged the following:

> It is also obvious that the testimony to be elicited from Mr. Gonzalez will be adverse to the interests to the client he represents. To the extent that the School Board intends to stand

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[5] Respondent spent little time on the designation of Gonzalez as a witness, asserting only that he was not required to obtain permission from the [ALJ] in order to call a witness, presumably to include the opposing party's attorney. (Apx. 301, p. 10). Respondent did, however, represent that she had "timely and properly" listed Gonzalez as a witness in the prehearing stipulation and Petitioner "did not at any time object to Gonzalez's inclusion on Respondent's list of witnesses." (Id.). In fact, Gonzalez first learned of his inclusion on the list when he returned from the Thanksgiving holiday on December 3, 2025 due to Respondent's filing the stipulations after hours. Gonzalez immediately called Respondent's attorney and exchanged emails ending with Gonzalez asking Respondent if they needed to take the matter before the ALJ. (Apx. 403 and 406).

[6] "It is clear that Mr. Gonzalez was the de facto decisionmaker at all levels of this case." (Apx. 297, p. 6). "The multiple roles assumed by Mr. Gonzalez as investigator, de facto decision maker and prosecutor clearly prejudice the Respondent." (Apx. 299, p. 8)

> behind the decision to terminate Respondent, Mr. Gonzalez's testimony will be used to show that the process was inherently flawed and violative of both School Board practices and fundamental due process. That testimony will obviously be adverse to the School Board's interests.
> Respondent intends to show that Mr. Gonzalez has demonstrated bias in this case which has poisoned every aspect of his investigation, his recommendations to the School Board and conduct of the case. For example, Mr. Gonzalez plainly states that he took the allegations of the six HR workers at face value but disbelieved all of the allegations made by Ms. Royal. …That bias goes beyond zealous representation of a client. (Apx. 298-299).

F. GONZALEZ'S INVESTIGATION OF ROYAL'S COMPLAINTS

Petitioner's Counsel, Thomas M. Gonzalez, has provided legal representation to the Citrus County School Board in labor and employment matters for more than fifteen years. (Apx. 164-165, Depo. 14:23-24:5). Sometime after June 17, 2024, Gonzalez was asked to review complaints Respondent made against five of her co-employees: Maria Holloway, Samantha Quandt, Stacey Taylor, Kimberly Waller, and Nancy Weaver. (Apx. 165, 15:6-10). All of the complaints alleged: (1) wrongful and intentional false allegations of Bullying and Harassment; (2) defamation of character, and (3) violations of the Principles of Professional Conduct for the Education Profession in Florida. (Apx. 108-114 Petitioner's Ex 1-5). The complaints identified the "Date of Alleged Incident" to be the date on which each of the five employees named by Royal had filed complaints of bullying and harassment against Royal and the respective dates of incidents that

each of the five employees had identified in her complaint against Royal. (Id.).

The complaints filed against Royal by the five employees who were the objects of her complaints were filed after it was announced that Royal would be returning to the Human Resources office from which she had been temporarily assigned since October 11, 2023, when she expressed concern for her safety following an encounter with a co-employee, Nancy Weaver. Specifically, in the presence of their supervisors, Weaver had accused Royal of targeting employees and threatened to file a complaint against her if she persisted. Royal left the meeting when it ended and later texted her supervisors saying that Weaver had made "some pretty strong allegations against me and I honestly didn't feel safe in the same office with her." (Apx. 26, Royal Statement pg. 19).[7] As a result of Royal's concerns, she was temporarily assigned to another work location, while retaining her duties and an outside investigator, the law firm of Weiss Serota Helfman Cole + Bierman, P.L., was engaged to investigate what the School District treated as an informal complaint. (Apx. 27, Royal statement p. 20).

Royal submitted a twenty-one-page document to the investigator which began with the statement that the document was "essential" to

[7]Apx. 8-48, is a statement Royal gave to the investigator assigned to investigate her concerns for her safety

explain the sequence of events which led up to October 11, 2023. (Apx. 8-48). The statement began with the school year of 2012-2013 and recounted Royal's experiences as the Policy and Compliance Officer. In the statement, Royal complained of the actions of her past and current supervisors and several employees including Weaver, Quandt, Waller, and Holloway. (Id.).

On April 16, 2024. The outside investigator issued her report. (Apx. 49-75). The report including summaries of interviews of the employees identified in Royal's statement to the investigator, including the six employees who filed complaints of bullying and harassment against Royal. (Id.). The investigator's report found no reasonable cause for Royal to be concerned for her safety. (Id.). Additionally, the investigator included the following finding:

> A recurring theme from the HR witnesses is that many presented specific instances of interactions with Ms. Royal wherein the witnesses reported negative, and sometimes unsafe or targeted feelings, based on the circumstances. Some of the stories echoed in what appeared to be an organic fashion across the testimonies of multiple people.
> While each witness's story, including Ms. Royal's, has no supporting documentation, repeated themes across multiple people lend credibility to repeated concerns.
> In sum, [Holloway, Waller, and Tompkins reported prior and current feelings of being mentally and emotionally unsafe and a hostile work environment due to an interaction with Ms. Royal. None reported current communication or interaction with Ms. Royal, and Ms. Royal reports that she does not visit the District

> office … . Therefore, lack of contact eliminates any immediate concerns. [Holloway, Waller, and Tompkins] also expressed future concerns of a hostile work environment, and for Ms. Waller, concerns for retaliation should Ms. Royal return to the office environment. Future retaliation concerns on behalf of any party have not yet occurred and are therefore outside the scope of this investigation. (Apx. 73).

On May 16 and 17, 2024, after it was announced that Royal would be returning to Human Resources, six employees filed complainants against Royal, alleging bullying and harassment. (Apx. 108-114, Petitioner's Exhibits 1-5). Gonzalez was asked to review those complaints. (Apx. 165, Depo 15:6-19). Royal responded to the report on May 22, 2024 in a 13-page statement addressed to the then superintendent of schools, Sandra Himmel. (Apx .95-107).

On June 8, 2025, Gonzalez issued separate reports on each of the six complaints, finding no cause for the allegations of bullying based largely on the fact that Royal had not been physically present in the Human Resources Department for seven months before the filing of the charges, no charge of bullying or harassment had been made by any of the employees until it was learned that Royal would be returning to the Human Resources offices, and the only remedy sought was that Royal be assigned to another work location.

Royal filed her complaints against five of six employees who had filed complaints against her on June 17, 2024. (Apx. 108-114). On February 20, 2025, Gonzalez submitted his report on Royal's complaint finding no support for her allegations and advising that "with respect to the claims of bullying and harassment which she brings against Waller, Quandt, Taylor, Weaver, and Holloway, I find that her conduct warrants disciplinary action." (Apx. 133). In his review of the six complaints filed against Royal and Royal's complaints against five of those six employees, Gonzalez did not interview any witnesses or conduct an investigation. In his report, Gonzalez wrote that he considered only the statement Royal submitted on January 16, 2024 during the investigation of what the District treated as Ms. Royal's informal complaint of an unsafe working environment, the final report of that investigation issued on April 16, 2024, and Ms. Royal's written response to the final report she submitted on May 22, 2024.

Gonzalez's filing of his report of his review of Royal's complaints ended his assignment in connection with the complaints themselves. All communications between Gonzalez and the administration thereafter regarding Royal's employment took place in his capacity as outside counsel to the School District.

LEGAL ARGUMENT

Respondent began her motion to disqualify petitioner's counsel with the representation that the "evidence in this case shows that every aspect of the termination decision was made by Thomas M. Gonzalez … to the determination of the appropriate discipline; to the final decision to terminate." (Apx. 292, Motion, p. 1). In fact, no evidence has been introduced in the hearing that was to have begun on December 9, 2025. No evidence showing Gonzalez made any decision regarding the termination or the appropriate level of discipline could have been introduced because he did not have the authority to make either decision and no proof to the contrary has been proffered. There has been no determination of Respondent's termination. This case is pending before The School Board of Citrus County, Florida, the only entity with the authority to terminate the Respondent. § 1012(2)(f), Fla. Stat. (2025). The School Board has voted to refer the matter to DOAH for the conduct of an evidentiary hearing.

The case comes to the School Board on a recommendation made by the Superintendent of the School District of Citrus County, Florida, the official charged with duties that include "*recommend[ing]* employees for dismissal," that Respondent be terminated. § 1012.27(5), Fla. Stat. (2025)

(emphasis added).[8] That recommendation was made in a petition which clearly identifies the Superintendent as its maker. (Apx. 136-146). The petition was signed by the attorney representing the Superintendent, in much the same way that complaints are signed by the attorney representing the plaintiff. That attorney, Gonzalez, recommended that Respondent should be disciplined.

The ALJ denied without explanation the motion to disqualify that he required Respondent to file but granted Respondent leave to call Gonzalez as a witness and advised the Petitioner, whose case the ALJ will hear and resolve disputed issues of fact making credibility findings that they "should consider" retaining counsel other than Gonzalez for the "remainder" of the case. No lawyer would advise his client to disregard that statement from the trier of fact. The ALJ therefore has granted the disqualification Respondent did not seek (if only because she did not wish to delay the trial) but certainly thinks appropriate. The ALJ conducted no hearing and gave no explanation of his ruling.

Respondent has no basis for calling Gonzalez as her witness. He made no decision except to find that Respondent had not established her allegations of bullying and harassment and to recommend to the

[8]The Petition to DOAH is styled: Scott Hebert, as Superintendent of Schools of Citrus County, Florida v. Teresa Royal.

Superintendent that Respondent's conduct warranted discipline. He has no first hand knowledge of the facts alleged in the petition. The allegations of the petition are just that, allegations. Neither he nor anyone else has made a decision or a determination on Respondent's termination. Gonzalez is not a central figure in the case. He took no part in any of the events alleged in the Petition for Termination. He has no first hand knowledge. He cannot be compelled to testify on behalf of Respondent and he has no testimony that would address a disputed issue of fact or be contrary to the case Petitioner will present.

1. The Rules of Professional Conduct do not Require Gonzalez's Withdrawal or Prevent his Testimony on Undisputed Issues

R. Regulating Fla. Bar. 4-3.7 prohibits a member of The Florida Bar from acting as an advocate at a trial in which the lawyer is likely to be a necessary witness on behalf of the client unless the testimony will relate to an uncontested issue or the disqualification of the lawyer would work a substantial hardship on the client. By its express terms, Rule 4-3.7 applies to attorneys representing the client on whose behalf the attorney will testify. The Rule has been used to call opposing counsel as a witness but only upon a sufficient showing that the testimony cannot be obtained by other means and "only if the attorney's testimony will be sufficiently adverse to the factual assertions or account of events offered [by the attorney] on

behalf of the client." *TMH Medical Services, LLC v. National Union Fire Insurance Company of Pittsburg, PA* 2018 WL 6620891, *4 (U.S.D.C. M.D. Fla. 09/18/2018) (emphasis added) (citing *Lancaster v. Harrow*, 2018 WL 1274754, *2-4 (U.S.D.C. M.D. Fla. 02/21/2018)).[9] Despite having a deposition and a transcript of the first day of hearing, Respondent has not identified any testimony which meets that standard. More importantly, her claim of entitlement to call Gonzalez rests on her disregard for the proper standard that should have been applied.

Specifically, Respondent claims Gonzalez's testimony will prejudice Petitioner. That is argument. The alleged acts or omissions that will be used to support that argument are Gonzalez's. None involves a disputed issue of fact. None will be part of Petitioner's case and no testimony Gonzalez could provide will contradict any part of Petitioner's case. In the context of an attempt to compel a party's attorney to testify on behalf of the opposing party, a narrow focus has been applied in assessing prejudice. *Cazares v. Church of Scientology of California, Inc.*, 429 So.2d 348, 350 (Fla. 5th DCA

[9] The intention by the opposing party to call the attorney as a witness…" (emphasis original). The ellipsis conceals the rest of the sentence which is: "but only if the attorney's testimony would be sufficiently adverse to the factual assertions or accounts of events offered on behalf of the client." (emphasis added, citations omitted). No case allows disqualification of opposing counsel based solely on a party's stated intention to call the attorney or without a demonstration of prejudice, as defined in cases dealing with the issue of calling opposing counsel.

1983). (“The mere assertion that the attorney’s testimony may prejudice his client has been held to be insufficient.”) (Id.).[10] The burden on Respondent is a heavy one, as illustrated in *TMH Medical Services*:

> Given the disfavored relief requested-disqualification of one’s chosen attorney-the Court expects Defendant’s position as to the alleged adverse nature of [the plaintiff’s attorney’s] expected testimony to be clearly and unambiguously stated and sufficiently supported via record evidence. Further, Defendant’s attempt to divine what position TMH “must take” at trial is at odds with the position that TMH is taking at this time, as necessarily conceded by Defendant. …The undersigned expresses absolutely no opinion on the validity of TMH’s position…but simply finds that Defendant has not carried its burden to establish that [the attorney’s] potential testimony (at least as set forth in the record before the Court) is sufficiently adverse to TMH’s position in this case to require disqualification of [the attorney] as trial counsel. 2028 WL 6620891 at 4 (emphasis added)

TMH Medical Services cites to *Alto Construction Company, Inc.*, 22 So.3d at 728, in which the Court held:

> It follows that the circuit court departed from the essential requirements of law when it disqualified Alto’s attorney without determining whether [the attorney’s] testimony would be adverse to Alto’s factual assertions or accounts of events. Thus we grant the petition and quash the order disqualifying Ms. Jahn as Alto’s counsel. (emphasis added).

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[10] Cazares applied the former code of professional responsibility, Fla. Bar Code of Prof. Resp DR5-102(B), which contained language allowing an attorney to continue representation until it became apparent that any testimony s/he might give would be “prejudicial” to his client. In updating its professional conduct rules in 1987, Florida declined to adopt a rule mandating mandatory disqualification from testimony for an opposing party. See *AlliedSignal Recovery Trust v/ Alliedsignal, Inc.*, 934 So.2d 675, 680 (Fla. 2s DCA 2006). Whether a lawyer should decline further representation can be addressed under the framework of 4-1.7 and 4-1.9. (Id., n.3)

The *Alto* court cited to *AlliedSignal Recovery Trust*, 934 So.2d at 679 (quoting *Allstate Insurance Company v. English*, 588 So.2d 294, 295) ("An attorney that will be called as a witness by an opposing party may be disqualified if the attorney's testimony will 'be sufficiently adverse to the factual assertions or accounts of events offered on behalf of on behalf of the client.'") (emphasis added).

Respondent argues that it is "obvious that the testimony to be elicited from Mr. Gonzalez will be adverse to the interests of the client he represents," because, "[t]o the extent Petitioner intends to stand behind the decision to terminate Respondent, Gonzalez's testimony will be used to show that the process was inherently flawed and violative of both School Board practices and fundamental due process." (Apx. 298-299, Motion, pp. 7-8). These alleged violations are described in the Motion. There has been no decision to terminate and while Respondent may argue that the process by which Gonzalez conducted his investigation of Royal's complaint of bullying and harassment is relevant to the question of where just cause exists for Respondent's termination, Gonzalez will provide no testimony that would contradict any fact the Petitioner will put forth on that question.

Respondent supports his assertion of Gonzalez's toxicity to Petitioner's case with contentions first made in her motion seeking

disqualification. Gonzalez conducted his investigation of Royal's complaints of bullying without interviewing a single witness "despite the fact that the subject of potential discipline and known witnesses are *always* interviewed during the course of School board investigations" (Id. pp. 3-4, emphasis in the original), Gonzalez "'second guessed' … findings of fact and credibility assessments made in a prior, related investigation and report," (Id. p. 4), Gonzalez never debriefed the . . . the Superintendent on any aspect of his investigation or his recommendation of termination (Id. 5), Gonzalez issued the termination letter "which gave effect to his report and recommended discipline and also filed the Petition for Termination" (Id. p. 6), "[a]s the sole investigator, Gonzalez is the only person who can testify as to the reasons why termination is appropriate (Id.), Gonzalez demonstrated bias that "goes beyond zealous representation of a client" by and "the multiple roles assumed by Mr. Gonzalez as investigator, *de facto decisionmaker* and prosecutor clearly prejudice the Respondent. (Id. 8).[11]

[11]Respondent buttresses this last contention by citation to *Scott v. State*, 717 So.2d 908, 910 n. 9 (Fla. 1998) for the proposition that one of the principal reasons for disqualifying an attorney witness is the "likelihood that his testimony would be given extra credence by a decisionmaker." (emphasis added). There is no case that finds due process to be implicated by a client's trust in his attorney's opinion, misguided or not. The concern involved in *Scott* was for the jury not merely a decisionmaker. And because it bears repeating, Gonzalez made no decision.

Disqualification of a party's chosen counsel is an extraordinary remedy that should be resorted to sparingly. *Arcara v. Phillip M. Warren, P.A.*, 574 So.2d 325 (Fla. 4th DCA 1991) (citations omitted). (The moving party bears the burden of demonstrating "the necessity of the attorney's testimony and thus his disqualification"), citing *Hiatt v. Estate of Hiatt*, 837 So.2d 1132, 1133 (Fla. 4th DCA 2003).[12] It is therefore worth noting that until ordered to do so by the Administrative Law Judge, Respondent never sought disqualification much less made any attempt to meet the standard applicable to the disqualification of opposing counsel on the grounds that he is an essential witness to both her defense and Petitioner's case-in-chief.[13] *Hiatt* clearly demonstrates its recognition of applicable law:

> Under the circumstances here, where no evidence was proffered or offered below, the [movant] has failed to carry her burden. Nothing in the record demonstrated that [opposing counsel] "is likely to be a necessary witness on behalf of his… client on a contested matter." *Allstate Ins. Co. v. English*, 588 So.2d 294, 295 (Fla. 2d DCA 1991).

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[12]Respondent gives no attention to the principle espoused in several cases including *Alexander v. Tandem Solutions, Inc.*, 881 So.2d 607, 608 (Fla. 4th DCA 2004) ("Motions for disqualification are generally viewed with skepticism because disqualification of counsel impinge on a party's right to employ a lawyer of choice, and such motives are often interposed for tactical purposes.") (citations omitted).

[13]"A motion to disqualify opposing counsel should be made with reasonable promptness after the party discovers facts which lead to the motion." *Transmark, USA, Inc. v. State*, 631 So.2d 1112, 1116 (Fla. 1st DCA 1994). Untimeliness is an independent ground for denial of a motion to disqualify. *TMH Medical Services, Inc.* 2028 WL 6620891 at *3.

> Absent the [movant's] showing that [the attorney] will be a necessary witness or that his testimony would be adverse to [his client's] position, *see id.*, the court departed from the essential requirements of the law in granting the motion to discharge counsel. See *In re Estate of Gory*, 1381, 1383 (Fla. 4th DCA 1990); *Ray v. Stuckey*, 491 So.2d 1211, 1214. (emphasis added).

Respondent attempts to abbreviate the showing she is required to make after taking no discovery, filing no motion and refusing to divulge the testimony he deems essential to both his defense and the Respondent's case but arguing that opposing counsel "will be a central figure" in the case. The case cited for that proposition is *Fleitman v. McPherson*, 691 So.2d 37 (Fla. 1st DCA 1997). The party seeking disqualification in that case, a plaintiff suing for defamation, was successful. The attorney whose disqualification he sought represented the defendant and would present evidence on behalf of his client about the conduct of the plaintiff that had formed the basis of the allegedly defamatory complaint the defendant had submitted to The Florida Bar. The court found, appropriately, that because his testimony may become a feature of the trial, he could not act at the defendant's attorney at trial. But the "central figure" theory does not apply in this case and it would be a different case if the Plaintiff had sought to disqualify Defendant's counsel because he was essential to Plaintiff's

case.[14] In that situation, the party seeking disqualification would have to show more than the lawyer's possession of evidence. Plaintiff would be required to show that the evidence the attorney would provide would be prejudicial to the facts or sequence of events that his client would put forth.

Fleitman cites to *Ray v. Stuckey*, 491 So.2d 1211, 1214 (Fla. 1st DCA 1986). *Stuckey* is a case in which a party sought to disqualify the other party's attorney. The Court described the relevant to be applied:

> The correctness of an order involving the disqualification of an order involving the disqualification of counsel must be determined by testing it against the standards imposed by the Disciplinary Rules of the Code of Professional Responsibility. [citing *Cazares*, supra] . . .
> The concern of this rule is that trial counsel might be inhibited from attacking his own credibility or arguing to the fact-finder the lack of credibility of his testimony, thus affecting his ability to properly represent his client. The testimony is therefore prejudicial only when sufficiently adverse to the factual assertions or account of events offered on behalf of the client. (emphasis added).

The question is not whether Respondent can make opposing counsel a "central figure" in the case she wants to present. It is whether that lawyer would give testimony on a contested matter that differed from the facts or

[14]The movant in *Alto Construction Company, Inc. v. Flagler Construction Equipment, LLC*, 22 So.3d 726 (Fla. 2d DCA 2009) cited *Fleitman* as authority for its contention that opposing counsel was disqualified because he had become a "central figure: in the case. The court found *Fleitman* unpersuasive because it "addresses the situation where the attorney will be testifying on behalf of his or her own client." 22 So.3d at 728, citing *AlliedSignal Recovery Trust v. AlliedSignal, Inc.*, 934 So.2d 675, 680 (Fla. 2d DCA 2006).

account the lawyer will present on behalf of his client. Respondent has yet to identify much less establish any testimony that Petitioner's attorney could give that is adverse to the factual assertions or account of events offered on behalf of the Petition for Termination. In fact, the factual assertions or account of events that will be presented on behalf of the Petitioner are those set out in the Petition for Termination. Gonzalez has no first hand knowledge of those facts as he did not witness or create them. He cannot provide testimony that contradicts any of them.

Gonzalez's role as an investigator does not require disqualification. In *AlliedSignal Recovery Trust v. AlliedSignal, Inc.*, *supra*, the court quashed an order of disqualification. "The motion stressed [the trial counsel's] long relationship with [the plaintiff in a fraud suit brought against AlliedSignal], the fraud claims were based on [the attorney's] investigation, and the advice he gave … created a conflict." (*Allied Recovery Trust*, 934 So.2d at 677. In denying that motion, the Court said:

> [The lawyer subject of the motion] was not going to testify for his own client. … But because [the defendant] could call [the lawyer] to testify against his client, the trial court concluded that any conflict waiver … was unreasonable because "[a] disinterested lawyer could not take the chance" that a jury could react negatively to [the lawyer's] extensive involvement with [the defendant]. [Petitioner] made no showing that the lawyer would give any testimony "sufficiently adverse to the factual allegations or account of events offered on behalf of the

> [client].” To allow disqualification without such a showing invites mischief. (934 So.2d at 679-70) (emphasis added).

The factual allegations and accounts that will be offered by Petitioner are those pled in the Petition for Termination. Respondent has not shown any testimony Gonzalez would give that would be adverse to those allegations and accounts.

2. Respondent’s Due Process Rights do not Include the Right to be Interviewed or to have Witnesses Interviewed

According to Respondent, “[t]he essential mystery in this case is how Ms. Royal came to be terminated in the absence of a formal sustained complaint.” (Apx. 293, p. 2). According to her, “[t]he evidence will show that the subject of potential discipline and known witnesses are always interviewed during the course of School Board investigations.” (Id. 4). One thing is certain and that is that Gonzalez cannot provide testimony that would support the latter assertion and the issue will be an element of Petitioner’s case in chief.

Respondent has no due process right to have an investigation before her discharge is recommended. She has cited no authority for the proposition that she is entitled to be interviewed or entitled to have “all” or any number of witnesses interviewed. The seminal case on pre-termination due process is *Cleveland Board of Education v. Loudermill*, 470 U.S. 532 (S.C. 1985) where the Supreme Court defined the process due a public

employee possessed of a property interest in employment to be a pre-termination opportunity to respond, coupled with a post-termination evidentiary hearing. Those guarantees do not include an investigation before termination is recommended. In *Loudermill*, the employee was hired as a security guard after indicating on his application that he had never been convicted of a felony. Eleven months later, as part of a routine examination of his employment records, the board discovered that in fact he had been convicted of a felony. 470 U.S. at 535. The employee was informed by letter that his employment was terminated. The court found no fault with the absence of an investigation. It focused on what happened after the employer decided to pursue termination.

Loudermill instructs that the process owed the employee includes notice of the nature of the charges and an informal opportunity to deny, explain, or mitigate them. Due process does not include the right to an investigation before those charges are brought. That is not to say that Respondent is precluded in any way from arguing the contrary but that argument would not involve disputed issues of fact. Gonzalez did not interview witnesses. He did credit the summary of the unsworn answers the five persons who Royal complained against her over her own unsworn writings. His consideration of those words were the basis his

recommendation that Royal had violated School Board policy. The Superintendent's charges based on those recommendation will be proven not by Gonzalez's or anyone else's recommendation but by the witnesses presented in the hearing.

3. The Direction to a Party That It Should Consider Obtaining Another Attorney Violates Petitioner's Rights to Its Choice of Counsel

After denying the motion to disqualify Gonzalez, the ALJ allowed Respondent to call Gonzalez as a witness, without any explanation of the basis for either action. Then the ALJ added the following statement: "In that regard, Petitioner should consider obtaining an attorney other than Gonzalez to represent [the School Board] for the remainder of this case. The attorney may be from Petitioner's current attorney's law firm."[15] "The law in Florida is clear—a judge may not enter into the fray by giving 'tips' or legal advice to either side." *State v. Dixon*, 217 So.3d 1115, 1126 (Fla. 3d DCA 2017). A judge's violation of that neutrality is in fact grounds for disqualification.

Dixon is cited in *State v. Adams*, 414 So.3d 375 (Fla. 3d DCA 2025) where the trial court was found to have erred by prompting an unrepresented party to make an untimely and insufficient *ore tenus* motion.

[15]In a motion seeking an order to allow for review, Petitioner noted that the advice was directed not to Gonzalez but to the Petitioner and inter alia asked for an explanation of "the remainder of the case." (Apx. 412-415). The motion was denied without comment. (Apx. 416)

414 So.3d at 380 (“Here, it is clear that Adams would not have moved to dismiss . . . without prompting from the judge over the State’s objection.”). Here, Respondent represented that she did not seek Gonzalez’s disqualification. (Apx. 251, 9:17-24) (“We are not asking that Mr. Gonzalez be disqualified - - he probably should be, but the reason we’re not making that formal motion is purely self-interest[.]”). Respondent did press his intention to call Gonzalez as a witness and suggest that he should be disqualified. She did not identify any testimony to be elicited from Gonzalez that involved a disputed issue of fact and has not done so in the mandated motion to disqualify.

The ALJ announced that the hearing could not continue and asked if anything could be done “in the interim.” (Apx. 258-259, 16:18-17:23). Gonzalez responded: “If you’re saying you need me to be a witness, I can do that.” The ALJ asked if that would disqualify Gonzalez as counsel and Gonzalez responded that he did not believe it would. (Apx. 259-260, 17:24-18-4). Respondent objected. Gonzalez offered to allow Respondent to make a proffer “of what they want to get from me as a witness”. (Apx. 272, 30:13-22). Respondent declined the offer. The ALJ then said, “You need to offer up a corporate representative that can be questioned as to the *decision* and if you’re saying it’s just someone that signed off on *your*

decision, that's the problem. I can't make findings of fact based on the lawyer's determination if indeed you're representing them and can't be a witness." (Apx. 273, 31:11-18) (emphasis added). Gonzalez responded as follows:

> I wouldn't ask you to, Judge. I would ask you to make findings of fact based on the testimony of the witnesses who are going to testify to the untruthfulness and there's going to be a credibility determination that you're going to have to make, but those witnesses are going to testify. That's who's going to prove the lie. (Apx. 273, 31:18-24).

Even after Respondent acknowledged that he had not deposed any of the persons specifically identified in the petition for termination as a matter of "attorney strategy" and Gonzalez represented that he was prepared to proceed, the ALJ ordered Respondent to file a motion to disqualify Gonzalez and to "have him as a witness." (Apx. 275, 33:12-22). The former, which was both untimely and without merit, was nominally denied; the latter granted but with the advice, spoken directly to the party, that it should consider changing counsel for the "remainder of the case."[16] The effect of that statement effectively disqualified Gonzalez.

[16]The ALJ's statement—that the lawyer Petitioner should consider hiring "may be" from the same firm—is gratuitous. No authority disqualifies an entire firm because one of its attorneys must testify on behalf of the client. To the extent it is intended to make retaining substitute counsel seem to be an easy matter, it is coercive as well.

If Gonzalez had an obligation to withdraw because he was a necessary witness on behalf of his client, that obligation rested on him, not the client. If Gonzalez could provide testimony contrary to the Petitioner's case, Gonzalez should have been disqualified. The ALJ clearly took sides, by first requiring Respondent to file an untimely and meritless motion for disqualification and then advising the Petitioner to disregard its counsel's opinion that he could testify to undisputed facts and instead retain substitute counsel for the "remainder" of the case. He did not advise an unrepresented party to get a lawyer. He told the Petitioner to get a different lawyer than the one it wanted. The Order for which review is sought is in fact a disqualification as well as an implicit finding that Respondent's assertions of Gonzalez's decision-making role in the termination are well-founded and his actions potentially unethical.

4. The Relief Sought by Petitioner

To allow Petitioner to have his counsel of their choice, this Court should grant review of the ALJ's order, require him to rescind his order allowing Respondent to call Gonzalez as a witness and directing Petitioner to consider seeking new counsel for the remainder of the case and prohibit Respondent from calling Gonzalez as a witness in her behalf.

CONCLUSION:

Respondent's defense to charges that she filed false charges of bullying and harassment against five of six employees who had filed charges against her is that because no investigation was conducted before her termination, she must be absolved of wrongdoing, even if the Petitioner proves its charges. No law would compel such an outcome. Respondent nevertheless argues that theory. She may not, however, deprive Petitioner of counsel of its choice when there are no grounds for doing so.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that the foregoing document was electronically filed with the Clerk of Court through the Florida Courts E-filing Portal and furnished this 20th day of February, 2026, via e-portal service and email to the Gary S. Edinger at GSEdinger12@gmail.com; and in accordance to Fla. R. App. Procedure 9.100(b)(3) to The Honorable James H. Peterson,

III both by email in c/o the Managing Judicial Assistant, Monique Plaskett, Monique.Plaskett@doah.state.fl.us and by Federal Express delivery directed to The Honorable James H. Peterson, III, Administrative Law Judge, Division of Administrative Hearings, 2001 Drayton Drive, Tallahassee, Florida 32311

/s/ Thomas M. Gonzalez
Attorney

CERTIFICATE OF COMPLIANCE FONT AND WORD COUNT

I HEREBY CERTIFY that the foregoing petition for review complies with the font and word count requirements of Rule 9.045(b) Fla.R..App.P. using Arial 14-point font and containing 12,177 words.

/s/ Thomas M. Gonzalez
Attorney